



Property Ownership, Title Deeds & Property Verification

Programme: Zimbabwe Real Estate Foundations | Module: Foundations of Real Estate | Study time: 40 min

Lesson Overview

Learn how professional estate agents approach property ownership and verification before marketing or facilitating a transaction. This lesson covers ownership, title documentation, authority to sell, joint ownership, companies, trusts, deceased estates, encumbrances, servitudes, property descriptions, development claims, document verification, red flags, due diligence and the professional limits of an estate agent's role. Learners will develop a practical property verification mindset and understand when matters must be referred to conveyancers, lawyers, valuers, planners, surveyors or other qualified professionals.

Key Takeaways

■	Establish who has legal authority to sell or lease a property before marketing
■	Distinguish between ownership, possession, and authority
■	Understand what a title deed represents and its limitations
■	Recognize that photographs of documents alone are not conclusive proof
■	Match documentation to the actual property being marketed
■	Use appropriate formal property identification rather than informal descriptions
■	Establish the capacity and authority of the person giving instructions
■	Recognize different ownership structures: individuals, companies, trusts, deceased estates
■	Understand joint ownership and spousal considerations
■	Recognize encumbrances, servitudes, and restrictions affecting property
■	Identify development claims versus approved developments
■	Apply the professional verification workflow systematically
■	Never turn red flags into marketing statements
■	Understand documentation hierarchy and what each document actually proves
■	Recognize when to refer matters to legal, conveyancing, planning, or other specialists

■	Apply the HouseLink verification formula: IDENTIFY → DOCUMENT → COMPARE → VERIFY → RECORD → REFER → MARKET
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Learning Objectives

Use this checklist to confirm you can apply this lesson professionally:

Learning objective	Self-check
Establish who has legal authority to sell or lease a property before marketing	■ Confident ■ Practising ■ Review
Distinguish between ownership, possession, and authority	■ Confident ■ Practising ■ Review
Understand what a title deed represents and its limitations	■ Confident ■ Practising ■ Review
Recognize that photographs of documents alone are not conclusive proof	■ Confident ■ Practising ■ Review
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Identify development claims versus approved developments	■ Confident ■ Practising ■ Review
Apply the professional verification workflow systematically	■ Confident ■ Practising ■ Review
Never turn red flags into marketing statements	■ Confident ■ Practising ■ Review
Understand documentation hierarchy and what each document actually proves	■ Confident ■ Practising ■ Review
Recognize when to refer matters to legal, conveyancing, planning, or other specialists	■ Confident ■ Practising ■ Review
Apply the HouseLink verification formula: IDENTIFY → DOCUMENT → COMPARE → VERIFY → RECORD → REFER → MARKET	■ Confident ■ Practising ■ Review

Lesson Guide

In-depth notes for Property Ownership, Title Deeds & Property Verification - study, annotate, and revisit before client meetings.

Property Ownership, Title Deeds & Property Verification

One of the most important responsibilities of a professional estate agent is knowing exactly what property they are dealing with.

Before an agent markets a property, arranges viewings, receives offers or makes important representations to prospective buyers, the agent should understand the property's identity, the client's authority and the information that has been provided.

This is where property verification becomes critical.

A property may look genuine.

The person occupying it may genuinely believe they own it.

The seller may have documents.

The property may have been advertised for years.

And yet there may still be an ownership, authority, planning, documentation or transaction problem.

The professional agent's job is not to investigate every legal issue personally.

The professional agent's job is to recognise what needs to be checked, avoid making unsupported claims, identify red flags and know when specialist assistance is required.

1. The First Question: Who Owns the Property?

Before asking how much a property is worth, an agent should ask a more fundamental question:

Who has the legal authority to sell or lease this property?

The person who contacts the agent is not necessarily the person who owns the property.

For example, the person contacting you may be:

The registered owner. A spouse or family member. A company director. A trustee. An executor or administrator. An authorised representative. A property manager. An occupant. A person claiming ownership without sufficient authority.

These situations cannot all be treated in the same way.

2. Ownership, Possession and Authority Are Different

One of the most important concepts in this course is the difference between ownership, possession and authority.

A person can possess a property without being its registered owner.

A person can manage a property without owning it.

A person can have some interest in property without automatically having authority to sell it.

An agent should therefore avoid the assumption:

"They have the property, therefore they can sell it."

3. What Is a Title Deed?

A title deed is an important legal document associated with registered ownership or rights in immovable property.

For an estate agent, the title documentation can provide important information about the property and the registered rights or ownership recorded against it.

However, simply seeing a document does not mean that the agent has completed every aspect of due diligence.

The agent must still consider whether the document corresponds to the property being marketed, whether the person giving instructions has authority and whether there are other circumstances affecting the transaction.

4. Never Rely on a Photograph of a Title Deed Alone

Modern transactions frequently involve documents being sent through WhatsApp, email or other digital channels.

An agent may receive a photograph or scanned copy of a title document.

This can be useful for preliminary review.

But a photograph alone should not automatically be treated as conclusive proof that everything is in order.

Documents can be incomplete, outdated, altered, misunderstood or unrelated to the property being presented.

Where verification is important, the appropriate records and professionals should be consulted.

5. Matching the Document to the Property

One of the basic verification principles is:

The property being marketed must correspond with the property described in the relevant documentation.

Consider a situation where an agent receives documentation for a 1,000 square metre stand but is shown a property that the owner describes as 1,500 square metres.

That discrepancy should not simply be ignored.

The agent should investigate the difference and obtain appropriate clarification before making representations to buyers.

6. Property Identification

Property should be identified using appropriate formal information rather than relying solely on informal descriptions.

Useful information may include:

Property address. Stand or erf information. Extent or size. Relevant title information. Survey information. Development or subdivision information where applicable.

The exact information required depends on the property and transaction.

7. The Person Giving the Instruction

When someone instructs you to sell a property, establish who they are and in what capacity they are acting.

For example, ask:

Are you the registered owner? Are you acting for someone else? Are you authorised to give this instruction? Is the property owned by an individual or an entity? Are there other people whose consent or involvement may be required?

These questions are not designed to make the process difficult.

They protect the agent, the client and prospective buyers.

8. Joint Ownership

Property may be owned by more than one person.

This creates an important verification issue.

An agent should not automatically assume that one co-owner can independently make all decisions concerning the property.

The exact rights and requirements depend on the ownership structure and applicable law.

Where multiple owners are involved, appropriate authority and instructions should be established.

9. Spouses and Family Members

Family relationships do not automatically establish ownership or authority.

A spouse may be involved in the property.

A child may live at the property.

A sibling may have paid for improvements.

A relative may claim an interest.

These circumstances can be important, but the agent should not attempt to resolve complex legal ownership questions by assumption.

Where rights or consent are unclear, refer the matter to an appropriate legal professional.

10. Property Owned by a Company

A company can own immovable property.

In such circumstances, the property belongs to the company rather than automatically belonging personally to one of its directors or shareholders.

This distinction is extremely important.

A director saying:

“I own this building because I own the company”

does not necessarily mean the individual personally owns the building.

The agent should establish who the registered owner is and whether the person instructing the agent has appropriate authority to act for the company.

11. Property Owned by a Trust

Trust structures can also be involved in property ownership.

An agent should not assume that any one person associated with a trust automatically has authority to sell trust property.

The relevant trust documentation, authority and legal requirements should be considered.

Where a trust is involved, specialist legal guidance may be appropriate.

12. Deceased Estates

Deceased estates require particular care.

If the registered owner has died, the family member who contacts the agent may not automatically have authority to sell the property.

The estate may need to be administered through the appropriate legal process.

The person dealing with the estate may be an executor or administrator, depending on the circumstances.

An agent should never simply accept:

“I am the owner’s son, so I can sell the house.”

That statement does not by itself establish legal authority.

13. Divorce and Matrimonial Disputes

Property can become complicated where spouses are divorcing or disputing ownership or control.

An agent should be cautious where:

One spouse instructs the agent to sell. The other spouse objects. There is an ongoing legal dispute. A court order may exist. The parties disagree about ownership.

Do not attempt to resolve a legal dispute between the parties yourself.

Seek appropriate legal guidance.

14. Power of Attorney and Representatives

Sometimes the property owner cannot personally handle a transaction and another person acts on their behalf.

The existence of a representative does not automatically prove authority.

The relevant authority should be established through appropriate documentation and professional advice where necessary.

An agent should avoid making legal conclusions about the validity or scope of a power of attorney unless properly qualified to do so.

15. Encumbrances

An encumbrance is a burden, restriction, claim or other matter affecting property or the owner's ability to deal with it.

Encumbrances can take different forms.

Examples may include:

Mortgages or security interests. Servitudes. Restrictive conditions. Court-related restrictions. Other registered or legally recognised interests.

The existence of an encumbrance does not automatically mean that a property cannot be sold.

But it may affect the transaction and should not be ignored.

16. Mortgage or Bond

A property may be subject to a mortgage or bond securing an obligation.

This does not necessarily mean the owner cannot sell the property.

However, the transaction may require appropriate processes involving the relevant financial institution and legal professionals.

An agent should not promise that a sale will proceed without understanding the circumstances.

17. Servitudes

A servitude can give another party a recognised right affecting part of the property.

For example, a property may have an access servitude or a servitude relating to services.

Servitudes can affect:

Access. Building positions. Development potential. Use of certain portions of land.

Therefore, a buyer interested in developing property may need to understand the impact of any servitudes before proceeding.

18. Restrictions and Conditions

Property documentation may contain restrictions or conditions affecting the use or development of land.

An agent should never assume:

"If I own the land, I can do anything I want with it."

Ownership does not necessarily mean unrestricted use.

19. Rates and Municipal Issues

Property may have outstanding rates, service charges or other municipal obligations.

These matters can become relevant during a transaction.

An agent should not make statements such as:

"There are definitely no outstanding charges."

unless that has been appropriately verified.

Where clearance certificates or other municipal documentation are relevant, the appropriate professionals and authorities should be involved.

20. Development Claims Must Be Verified

Development land creates significant opportunities for estate agents, but it also creates significant risk.

Owners may say:

"You can build apartments here." "This can be subdivided." "The council has approved it." "Commercial use is allowed." "The land can accommodate 50 units."

These statements may or may not be correct.

The professional agent should distinguish between:

Owner's opinion. Potential use. Planning possibility. Application submitted. Approval granted. Development completed.

These are completely different stages.

21. The Verification Principle

Whenever a statement could materially influence a buyer's decision, ask:

"What evidence supports this statement?"

Examples:

"Approved subdivision."

What document supports the approval?

"Commercially zoned."

What planning information confirms the permitted use?

"Title deeds available."

What documentation exists and whose name is recorded?

"No debts on the property."

What current evidence confirms this?

“Guaranteed rental income.”

What contractual or financial evidence supports the guarantee?

22. Red Flags During Property Intake

A professional agent should develop the ability to recognise warning signs.

Red flags may include:

The person refuses to provide basic ownership information. The property description does not match the documents. The seller is unusually desperate to complete immediately. The price is dramatically below comparable properties without a clear reason. The seller says documents are “lost” but wants immediate advertising. Different people claim ownership. A deceased owner is still recorded without clear estate authority. The property is being sold by a company but the individual claims personal ownership. The owner claims development approval but cannot provide supporting information. The seller asks the agent to hide information from buyers. The seller refuses reasonable verification questions. There are inconsistencies in property size, address or ownership information.

A red flag does not automatically prove fraud.

It means the matter requires further investigation.

23. The Professional Verification Workflow

A professional agent can develop a standard property-intake process.

Step 1 — Identify the property.

Record the address, property description, stand or erf information, size and other relevant details.

Step 2 — Identify the instructing party.

Establish who is giving the instruction and in what capacity.

Step 3 — Review available documentation.

Collect relevant documents for preliminary review.

Step 4 — Compare information.

Check whether the property description and ownership information appear consistent.

Step 5 — Identify red flags.

Record anything that appears inconsistent, incomplete or unclear.

Step 6 — Verify material claims.

Claims that could influence a buyer should be appropriately verified.

Step 7 — Escalate specialist matters.

Refer legal, conveyancing, planning, surveying, valuation or technical matters to the appropriate professionals.

Step 8 — Establish what can safely be advertised.

Only make representations that are accurate and appropriately supported.

24. Never Turn a Red Flag Into a Marketing Statement

Suppose an owner says:

“The land should be approved for apartments soon.”

It would be dangerous to convert that into:

“Approved apartment development opportunity.”

The marketing statement is stronger than the information available.

A professional agent should never make a statement more certain than the evidence supports.

25. Documentation Hierarchy

Different documents have different purposes.

A property advertisement is not ownership evidence.

A WhatsApp message is not automatically proof of legal authority.

A valuation report is not a title document.

A municipal document is not necessarily proof of registered ownership.

A sale agreement is not automatically the same thing as completed transfer of ownership.

The agent must understand what each document actually establishes.

26. When an Agent Should Refer a Matter

Professionalism includes knowing your limits.

An agent should consider referral when the matter involves:

Complex ownership disputes. Interpretation of legal documents. Deceased estates. Trust structures. Company authority. Divorce-related property disputes. Complex servitudes. Conveyancing questions. Planning approvals. Survey disputes. Formal valuation questions. Potential fraud.

The correct professional response is not:

“I don't know, but I will guess.”

The correct response is:

“This requires specialist confirmation. Let us refer it to the appropriate professional.”

27. The Agent Is Not the Lawyer

Estate agents need sufficient property knowledge to recognise issues, but that does not mean they should practise law.

An agent should not casually provide definitive legal opinions concerning:

Ownership disputes. Contract interpretation. Validity of legal instruments. Estate administration. Trust law. Company law. Complex conveyancing issues.

Understanding a legal concept and giving legal advice are not the same thing.

28. Verification Protects the Buyer

Property verification protects prospective buyers from relying on inaccurate information.

A buyer may invest significant money based on what an agent tells them.

If the agent incorrectly claims that a property can be subdivided, developed or used for a particular purpose, the buyer may make a decision based on false assumptions.

Professional verification reduces this risk.

29. Verification Protects the Seller

Verification also protects sellers.

It prevents misunderstandings about what the agent has been instructed to market.

It can identify missing documents early.

It can prevent unnecessary disputes.

It can help identify issues that could delay a transaction.

30. Verification Protects the Agent

The agent also benefits.

A clear property file can provide evidence of:

What information was provided. What was verified. What remained unverified. What the client represented. What was referred to another professional.

Good records are therefore part of professional risk management.

31. Property File Management

Every property should have an organised file.

Depending on the transaction, the file may contain:

Client identification information. Agency agreement. Property details. Ownership documentation. Marketing approvals. Property photographs. Relevant correspondence. Viewing records. Offers. Important disclosures. Referral records. Transaction documents received or forwarded in the agent's role.

The exact requirements should follow applicable law, regulation and company policy.

32. Never Alter Important Documents

An agent should never alter ownership, legal or official documents simply to make them appear clearer or more favourable.

If a copy needs to be annotated for internal purposes, ensure the original remains preserved and the annotation is clearly identified as such.

33. Digital Verification

Digital communication has made property transactions faster.

But it has also created new risks.

Agents should be alert to:

Edited documents. Fake identity documents. Impersonation. Fake proof of payment. Compromised email accounts. Fraudulent property advertisements. False ownership claims.

Never treat a digital file as genuine simply because it looks professional.

34. The "Pause Before Publishing" Rule

Before publishing a property advertisement, ask:

Do I know who instructed me? Do I understand their authority? Can I identify the property accurately? Do the important property details appear consistent? Have material claims been appropriately verified? Am I making any statement stronger than the evidence? Have I identified any red flags? Does any issue require specialist referral?

If there is a serious unresolved issue, pause the marketing rather than rushing forward.

35. The Professional Standard

A professional agent should never think:

“My job is simply to get the listing.”

The better mindset is:

“My job is to take a legitimate property instruction, understand the property, understand my client's authority, accurately represent what is known, identify what needs verification and manage the transaction professionally.”

36. Final Property Verification Principle

Remember the HouseLink verification formula:

IDENTIFY → DOCUMENT → COMPARE → VERIFY → RECORD → REFER → MARKET

Identify the property and instructing party.

Document the information provided.

Compare the information for inconsistencies.

Verify material claims appropriately.

Record what you have established and what remains outstanding.

Refer specialist matters to the correct professional.

Market the property accurately.

This sequence can prevent serious professional mistakes.

Never let the pressure to get a property on the market become more important than knowing what you are actually marketing.

Apply in the Field

■	Practise: Establish who has legal authority to sell or lease a property before marketing
■	Practise: Distinguish between ownership, possession, and authority
■	Practise: Understand what a title deed represents and its limitations
■	Practise: Recognize that photographs of documents alone are not conclusive proof

Reflection Questions

1. How will you apply “Establish who has legal authority to sell or lease a property before marketing” in your next client conversation or property visit?
2. What is one habit you will change this week based on “Property Ownership, Title Deeds & Property Verification”?
3. Which part of this lesson needs more practice before you move on — and how will you get it?

Professional Tip

The best HouseLink agents translate training into consistent field habits. Read this note, use the linked forms, then practise one action before your next lesson.

Related Field Toolkit

These branded HouseLink forms support this lesson - download them from the Toolkit tab in your course:

■	Compliance Checklist
■	Document Submission Checklist

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